BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, PUNE

COMPLAINT NO. _____ OF 2026

IN THE MATTER OF:

Mandeep Singh .....**COMPLAINANT**

Versus

Axis Bank Ltd. .....**OPPOSITE PARTY**

SYNOPSIS

The present complaint pertains to the operational handling of a post-reporting unauthorized credit card transaction by Axis Bank Ltd. On January 21, 2026, the Complainant fell victim to a cyber-fraud incident resulting in an unauthorized debit of INR 1,05,766. The Complainant blocked the card and formally reported the fraud to the bank within exactly 35 minutes of the transaction. Despite this prompt notification, Axis Bank failed to freeze the funds and allowed the final financial settlement to occur.

The Complainant relies upon Section 7 of the RBI Master Circular on Customer Protection (**Ref: DBR.No.Leg.BC.78/09.07.005/2017-18**), which states that a customer bears zero liability for any loss occurring after the reporting of an unauthorized transaction. However, Axis Bank has declined to apply this regulatory protection, stating in its official response that "*as the transactions have been authenticated and processed securely, the Bank will not be able to take this matter forward as a dispute"* (Copy of the email response is annexed herewith as **Annexure C-4 (iii))**. The crux of this complaint is the bank's operational failure post-reporting: despite the Complainant formally reporting the fraud within 35 minutes, the bank made no attempt to place the funds on hold to allow time for investigation. Instead, the bank allowed the final financial settlement to proceed based entirely on the initial authentication, ignoring the Complainant's immediate notification to halt the transfer. Consequently, because the settlement was permitted to clear, the bank's automated billing cycle continues to levy late payment charges and finance interest on the disputed principal month after month. The Complainant respectfully places these operational facts and the relevant regulatory provisions before the Hon'ble Commission for independent evaluation.

LIST OF DATES AND EVENTS

Date	Event
21-01-2026	(16:19 hrs) Unauthorised credit card transaction of ₹1,05,766 executed via a vishing scam on Axis Bank Credit Card ending in 7619.
21-01-2026	(16:51 hrs) Complainant called Axis Bank customer care, blocked the credit card, and raised a formal transaction dispute within 35 minutes of the fraud (SR No: 260121209558).
21-01-2026	(~1 to 1.5 hours post-incident) Complainant formally registered a complaint on the National Cybercrime Reporting Portal (Ack No: 31901260016169) and emailed the Axis Bank Principal Nodal Officer requesting a freeze on the transaction settlement
27-01-2026	Axis Bank issued its first rejection (SR No: 260121209558), stating it had concluded the investigation and closed the dispute under "customer liability" due to the transaction being secured by two-factor OTP authentication.
03-02-2026	Complainant submitted the physically stamped Kharadi Police Station complaint to the bank, establishing an active criminal investigation, and reiterated the request for temporary shadow credit under RBI guidelines while the case is open.
13-02-2026	Upon generation of the credit card statement, the Complainant formally requested the bank to suspend the billing of the disputed amount, halt the accrual of late fees while the active dispute and police investigation were ongoing.
24-02-2026	The Principal Nodal Officer (PNO) issued a final rejection letter (SR No: 260121219966), approved by the Internal Ombudsman, stating they were "unable to accept the claim of fraudulent activity" due to the transaction being conducted securely with OTP verification.
25-02-2026	Complainant officially escalated the grievance to the Reserve Bank of India (RBI) Banking Ombudsman (Complaint No: N202526021040716).

15-03-2026	In response to a formal request from the CRPC (RBI Ombudsman) seeking comments on the bank's submissions, the Complainant submitted official police investigation records establishing that the disputed funds were used by an unauthorized third party to purchase gold delivered to Noida, UP
17-03-2026	Axis Bank responded to the RBI Ombudsman, stating that the settlement could not be stopped due to "Visa/MasterCard network rules" and automated systems. The RBI Ombudsman subsequently closed the complaint.
12-04-2026	Acting in extreme good faith, the Complainant emailed the bank offering to pay the entire disputed principal in installments if the bank waived the late fees and protected the Complainant's CIBIL score. The bank failed to accommodate this reasonable request.
April to June 2026	Axis Bank executed auto-debits totaling INR 26,989 from the Complainant's savings account over three months. These deductions were made by the bank to recover the 'minimum amount due' generated against the disputed credit card bill
02-05-2026	Complainant registered a grievance on the CPGRAMS portal (Registration No: DEABD/E/2026/0065638) seeking relief for the bank's failure to halt the settlement post-reporting
07-05-2026	CPGRAMS grievance was closed following a standard response from Axis Bank citing OTP authentication.
08-05-2026	Complainant filed a CPGRAMS Appeal (DEABD/E/A/26/0006137) explicitly asking the Appellate Authority to review the post-reporting settlement failure under Section 7 of the RBI Circular.
15-05-2026	The CPGRAMS Appeal was closed based on the bank's final response. The bank highlighted the e-commerce transaction with OTP-based two-factor authentication, rejected liability on the basis of compromised credentials, and stated that halting the post-reporting settlement was "not feasible" due to real-time network routing.
31-05-2026	Complainant registered a grievance on the National Consumer Helpline (NCH) Portal (Docket: 9422255) seeking an independent evaluation of the bank's post-reporting settlement under RBI Section 7(b), alongside requests for a reversal of the principal, a waiver of compounding penal charges, and a halt on adverse CIBIL reporting.

04-06-2026	Axis Bank closed the NCH docket (SR No: 260601448730), refusing to take the matter forward as a dispute based on the same "OTP authentication" reason again. The bank requested clearance of the disputed amount along with all applicable charges, noting this decision was approved by its Internal Ombudsman.
08-07-2026	NCH issued its final communication, advising that if the Complainant remains unsatisfied with the bank's response, the appropriate recourse is to file a formal case before the designated Consumer Commission via the e-Jagriti portal.
08-08-2026	Filing of the present Consumer Complaint before this Hon'ble Commission.

Place: Pune
Date: 08-08-2026

Signature of Complainant:

Name: MANDEEP SINGH